

chase be made in the trustee's own name or in the name of a trustee for him (*e*), by private contract or public auction (*f*), from himself as the single trustee, or with the sanction of his *co-trustees (*a*); for he who [*485] undertakes to act for another in any matter cannot, in the same matter, act for himself (*b*). The situation of the trustee gives him an opportunity of knowing the value of the property, and as he acquires that knowledge at the expense of the *cestui que trust*, he is bound to apply it for the *cestui que trust's* benefit (*c*). Besides, if the trustee appeared at the auction professedly as a bidder, that would operate as a discouragement to others, who seeing the vendor ready to purchase at or above the real value, would feel a reluctance to enter into the competition, and so the sale would be chilled (*d*).

Trustee who has disclaimed. — But the rule does not apply to a person named as trustee, but who has *disclaimed* without having acted in the trust (*e*), [or to a person who has the power of becoming a trustee though he never actually does become one (*f*),] or to a *tenant for life* whose *consent to the sale* is required by the terms of the power (*g*); or to mere nominal trustees as *trustees to preserve contingent remainders* (*h*); or where A. is the trustee in fee for B. in fee, and

(*e*) *Campbell v. Walker*, 5 Ves. 678; S. C. 13 Ves. 601; *Randall v. Errington*, 10 Ves. 423; *Crowe v. Ballard*, 2 Cox, 253; S. C. 3 B. C. C. 117; *Hall v. Hallett*, 1 Cox, 134; *Watson v. Toone*, 6 Mad. 153; *Baker v. Carter*, 1 Y. & C. 250; *Knight v. Majoribanks*, 2 Mac. & G. 12.

(*f*) *Campbell v. Walker*, *Randall v. Errington*, *ubi supra*; *Ex parte Bennett*, 10 Ves. 381, see 393; *Ex parte James*, 8 Ves. 337, see 349; *Whelpdale v. Cookson*, 1 Ves. 9; S. C. stated from *R. L. Campbell v. Walker*, 5 Ves. 682; *Ex parte Hughes*, 6 Ves. 617; *Ex parte Lacey*, Id. 625; *Lister v. Lister*, Id. 631; *Whichcote v. Lawrence*, 3 Ves. 740; *Attorney-General v. Lord Dudley*, G. Coop. 146; *Downes v. Grazebrook*, 3 Mer. 200.

(*a*) *Whichcote v. Lawrence*, 3 Ves. 740; *Hall v. Noyes*, cited Id. 748; and see *Morse v. Royal*, 12 Ves. 374.

(*b*) *Whichcote v. Lawrence*, 3 Ves. 750; *per Lord Rosslyn*; *Ex parte Lacey*, 6 Ves. 626, *per Lord Eldon*; *Re Bloye's Trust*, 1 Mac. & G. 495.

(*c*) See *Ex parte James*, 8 Ves. 348.

(*d*) See *Ex parte Lacey*, 6 Ves. 629.

(*e*) *Stacey v. Elph*, 1 M. & K. 195; and see *Chambers v. Waters*, 3 Sim. 42.

[(*f*) *Clark v. Clark*, 9 App. Cas. 733.]

(*g*) *Howard v. Ducane*, T. & R. 81; *Bevan v. Habgood*, 1 J. & H. 222; *Dicconson v. Talbot*, 6 L. R. Ch. App. 32, see *ante*, p. 317.

(*h*) *Sutton v. Jones*, 15 Ves. 587; *Naylor v. Winch*, 1 S. & S. 567; *Pooley v. Quilter*, 4 Drew. 189; *Parkes v. White*, 11 Ves. 226.